

Court No. - 37

Case :- WRIT - C No. - 7265 of 2020

Petitioner :- Samundar Singh

Respondent :- U.P. Power Corporation Ltd And 5 Others

Counsel for Petitioner :- Abhijeet Mukherji, Sushmita Mukherjee

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C.

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Shamim Ahmed, J.

Heard learned counsel for the petitioner; Sri Baleshwar Chaturvedi, learned counsel for the respondents.

By means of this writ petition, the petitioner has come to this Court challenging the disconnection notice dated 06.02.2020 as well as the bill for the period 20.11.2019 to 22.12.2019 filed as Annexure No.14 to the writ petition.

The petitioner's claim that the bill which includes previous arrears to the tune of Rs.12,71,647 is illegal as the petitioner's claim has not been decided by the authorities as per the order of this Court dated 20.04.2006 passed in Writ Petition No.21836 of 2006. Further submits that only disconnection notice has been issued.

The writ petition is ***disposed of*** with the observation that the petitioner can approach the Executive Engineer under, Clause 6.5 of the Electricity Supply Code, 2005. In case, petitioner approaches the Executive Engineer, respondent No.3 within a period of one week from today, his claim would be considered by the Executive Engineer, respondent No.3 and thereafter he will pass an appropriate order within a period of three weeks in accordance with law.

For a period of four weeks, no coercive action shall be taken against the recovery of the amount mentioned in disconnection notice and the same shall be subject to final decision that the Executive Engineer will take in this regard.

Order Date :- 28.2.2020

P.S.Parihar

(Shamim Ahmed, J.) (Abhinava Upadhyaya, J.)